Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1372
Claimant:	William Santos
Adjuster:	Alison Sweeney

11/08/2023
Claim received for a side impact collision at an intersection. Claimant is represented by counsel, and all further contact will go through the attorney's office.

01/03/2024
Reviewed the police report and the driver's policy declarations. The claimant is named as a driver on the policy, and the coverage period was in force at the time of the loss.

01/27/2024
Obtained statements from two independent witnesses and the other driver. All three describe the collision the same way as the claimant did, and the photos taken at the scene are consistent with that account.

02/01/2024
Police and witnesses both confirm the claimant was seated in the vehicle at the time of impact. No record shows any prior damage to the vehicle, and the repair estimate was requested.

02/25/2024
Received the medical records describing a shoulder injury. The nature of the injury and the force of the impact appear to fit well together. Our file shows no earlier injury to the same area.

03/06/2024
Treatment followed a typical course, with physical therapy and follow-up visits gradually decreasing as the claimant's condition improved. The provider's notes reflect steady progress.

04/10/2024
Claimant contacted our office to add a few minor details about the sequence of events. The core account did not change from the original statement, and the additions were consistent with the physical evidence.

04/13/2024
Reviewed the damage report with the repair appraiser. It is not yet claer whether every area of damage resulted from this impact, so the appraiser will inspect the vehicle further before finalizing the estimate.

05/31/2024
Reviewed the medical treatment timeline against the records on file. Nothing in the file suggests the damage or injury occurred before the coverage period started.

06/15/2024
Referred the file for final evaluation of the bodily injury and property damage components. Further correspondence will be directed to the claimant's attorney.

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Recorded Statement

Claim number:	C-1372
Statement of:	William Santos
Taken by:	Alison Sweeney
Date:	11/10/2023

Q: Thank you for taking the time to speak with me today. This recorded statement concerns the collision at the intersection in Houston, Texas. Please state your full name for the record.

A: I'd rather just keep it to the accident, if that's alright. I'm the driver of the blue sedan that was hit.

Q: That's fine. Can you walk me through what happened as you approached the intersection?

A: I had a green light and I was going straight through. I was maybe a few car lengths from the crossing when a pickup coming from my right just kept going. It didn't stop for its red. It came straight into the driver's side of my car.

Q: How fast do you estimate you were traveling?

A: Not fast, probably around the speed limit, maybe a little under becasue traffic was thick.

Q: Did you have a chance to brake or swerve before impact?

A: I hit the brakes as soon as I saw him, but there wasn't time to avoid it. The impact was hard and on my side of the car.

Q: Were you wearing your seatbelt, and did the airbags deploy?

A: Yes, I was belted. The side curtain airbag came out. My head hit the window and my shoulder slammed into the door frame.

Q: Where are you experiencing injuries now?

A: My right shoulder is the worst of it. I can't lift my arm above my chest without sharp pain. I went to an urgent care clinic that same afternoon and they took X-rays and told me to see a specialist.

Q: Have you seen anyone since then?

A: I have an appointment with an orthopedic doctor next week for an MRI. I've been taking pain medication and doing some of the exercises they gave me.

Q: Is there anything else you would like to add?

A: Only that I didn't do anything to cause this. I was following the rules and I'm trying to get back to work.

Q: Thank you. This concludes the statement.